

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 13, 2026 at 1:30 pm

Rulings Posted: 7/9/26 at 3 pm

#	Case Name	Tentative
202	<i>Sanders vs. California Department of Transportation</i>	Defendant Martin Wagner’s motion to quash service of summons is DENIED. (See Code of Civ. Proc. § 418.10.) Plaintiff met his burden to show service of process was properly effectuated, including reasonable diligence to personally serve Defendant at his usual place of business and on defense counsel prior to substitute service. (Code of Civ. Proc. § 415.20, subd. (b); <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [burden]; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750 [two or three attempts to personally serve defendant at a “proper place” ordinarily qualifies as “reasonable

		diligence”]; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 389 [a defendant may be “personally” served by delivering a copy of the summons and complaint authorized to accept service on behalf of that defendant]; see also ROA 157, Attachment 5.b.(5); Declaration of Roy K. Suh ¶¶ 2.1.2, 2.1.4, 2.3.) Plaintiff shall give notice.
203	<i>Montgomery vs. HB Healthcare Associates, LLC</i>	Before the Court is the Demurrer filed on 3/26/26 by Defendant HB Healthcare Associates LLC dba Sea Cliff Healthcare Center (Defendant), as to the First Amended Complaint filed on 2/26/26 by Plaintiff Mary Montgomery, individually and as successor-in-interest to decedent Carol Montgomery (Plaintiff). The Demurrer is OVERRULED as to the First Cause of Action. Plaintiff has now added sufficient specificity as to the factual basis for the claim. (FAC ¶¶ 8-12.) The Demurrer is SUSTAINED as to the Fourth Cause of Action, without further leave to amend, as Plaintiff has again failed to plead a factual basis for the constructive fraud claim. No authority supporting any fiduciary duty or confidential relationship in this context has been presented by Plaintiff, and it is not self-evident that such a relationship existed. Nor has Plaintiff adequately alleged facts to show an intent to deceive, or justifiable reliance. Because Plaintiff was previously given leave to amend yet made no meaningful improvements to the claim, Plaintiff appears unable to do so. The 7/13/26 CMC is continued to 8/10/26 at 8:45am in Dept. C24. Defendant shall give notice.

204	<i>Garcia vs. Prime Comms Retail, LLC</i>	Daniel Ginzburg, Manny Starr, and Mike Rachmann's (Moving Counsel) motion to be relieved as counsel for Plaintiff Abril Erandi Garcia is GRANTED. Moving Counsel shall serve the signed order on Plaintiff and all parties that have appeared. Moving Counsel will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon Plaintiff and all other parties. Moving Counsel shall give notice.
207	<i>Huntington Continental Town House Association Number 3, Inc. vs. CAL Landscaping & Maintenance</i>	The motion of defendants Cal Landscaping & Maintenance, Inc., and Carissa Amesquita for an order setting aside the defaults entered against them on February 13, 2026 is GRANTED. Defendants are to file the original answer and serve a copy by 7/20/26. Defendants Cal Landscaping & Maintenance, Inc., and Carissa Amesquita (collectively referred to as Defendants) move for an order setting aside the defaults entered against them on February 13, 2026. They contend that these defaults, which are the second defaults entered against them, should be set aside because their counsel was unaware that the Court had entered the order on stipulation setting aside the defaults entered on November 4, 2025 and directing counsel to file a responsive pleading within 15 days of entry of the order. They contend that several code sections and theories provide for the relief they are requesting. The Court's file supports the contentions of defense counsel that she was unaware that the Court had entered the order on stipulation to set aside the first defaults. (See Code Civ. Proc. § 473(b).) Specifically, the file shows that defense counsel submitted and served the stipulation to set aside the first defaults with the proposed order thereon

	on January 23, 2023. (See ROAs 22 and 26.) Although the Court entered the order on January 23, 2026, there is nothing showing that the order was served on either counsel. The Court's file shows that, on February 13, 2026, plaintiff filed requests for defaults of the defendants with a declaration by plaintiff's counsel. (ROAs 29 and 31.) However, the file also shows that defendants tried to file an answer on that same day, i.e., on February 13, 2026, but the answer was rejected by the Clerk's Office because the default had already been entered. (See ROAs 21, 22, and 23.) The Court's file further shows that counsel for both parties appeared at the case management conference on February 17, 2026, and that defense counsel was unaware that second defaults were entered against defendants on February 13, 2026. (See Minute Order of February 17, 2026, ROA 34.) The file shows that plaintiff's counsel objected to the Court's vacating the defaults at the case management conference and the Court advised counsel that a notice to set aside the defaults was necessary to have them set aside unless counsel entered into a stipulation. The file also shows that the Court ordered counsel for the parties to meet and confer after the hearing. These facts support setting aside the second defaults of the defendants under Code Civ. Proc. § 473(b) for inadvertence or excusable neglect. The court vacates the 7/13/26 default prove up. The court sets a CMC for 8/10/26 at 8:45am in Dept. C24.
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208	<i>Cots vs. Cats</i>	Noah Green, Esq.’s (Moving Counsel) motion to be relieved as counsel for Plaintiff Donald Cots is GRANTED. The Court will interlineate the new hearing date on the OSC into the proposed order. Moving Counsel shall serve the signed order on Plaintiff and all parties that have appeared. Moving Counsel will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon Plaintiff and all other parties. The court continues the OSC re: dismissal of complaint for failure to serve defendant from 7/13/26 to 10/12/26 at 8:45am in Dept. C24. Moving Counsel shall give notice.
209	<i>Briggs & Alexander, A Professional Law Corporation vs. The Dodell Law Corporation</i>	The general demurrer of cross-defendant Briggs & Alexander, APLC, to the first cause of action in the cross-complaint of cross-complainants The Dodell Law Corporation and Herbert L. Dodell is SUSTAINED with 20 days’ leave to amend. The general and special demurrers to the third cause of action in the cross-complaint is OVERRULED. The propriety of a cross-complaint against a stakeholder in an interpleader action is somewhat in dispute. (See, e.g., Weil & Brown, California Practice Guide: Civil Procedure Before Trial (TRG 2026 update), Interpleader, § 2:491.1, and CEB, Civil Procedure Before Trial (2026 update), Interpleader, § 28.30.) Here, the cross-complaint relates to the funds held in the escrow account by moving cross-defendant in its role as escrow holder. (See cross-complaint at ¶¶ 14 and 15.) The cross-complaint further alleges

	that the moving cross-defendant breached its duty to act as a neutral party and colluded with other cross-defendants for their financial benefit. (See cross-complaint at ¶¶ 38 and 39.) Thus, the cross-complaint relates to the interpleader and is properly asserted in this case. <u>First cause of action for declaratory relief.</u> The elements of a claim for declaratory relief are: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to a plaintiff's rights or obligations. (<i>Waterford Property Co. v. County of Orange</i> (2026) 120 Cal.App.5th 530, 539.) Moving cross-defendant contends that this cause of action fails because it does not present any disputes suitable for judicial resolution. Specifically, moving cross-defendant contends that the first cause of action only contains challenges to the arbitration award that are properly brought through a petition to modify or correct that award. It also contends that the cause of action contains demands for compensation that should have been pled as separate causes of action. In fact, while cross-complainants' first cause of action seeks a judicial determination of the rights and obligations of the cross-complainants and cross-defendants, they appear to be challenging the correctness of the arbitration award, among other things. They allege as follows in ¶ 32: Cross-Complainants desire a judicial determination and resolution of the rights, duties, responsibilities, and obligations as between and mount Cross-Complainants . . . relating to Cross-Complainants' legal work for the Redding Parties, the amounts the Redding Parties presently owe Cross-Complainants for such legal work, the Arbitrator Ruling, the
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	Escrow, and related topics alleged in this Cross-Complaint as set forth in Paragraph 32, above [sic]. A judicial declaration is necessary and appropriate at this time under the circumstances. This allegation is less than clear as to what judicial determination cross-complainants seek with respect to the moving cross-defendant. The demurrer to the first cause of action for declaratory relief is sustained with leave to amend. <u>Third cause of action for breach of fiduciary duty.</u> Although moving cross-defendant apparently does not deny that, as an escrow holder, it owed a fiduciary duty to the parties to the escrow, including responding cross-complainants, it contends that the third cause of action fails because it does not allege the terms of the escrow agreement that prescribe those fiduciary duties. Here, the cross-complaint alleges that cross-defendant breached its fiduciary duty to be neutral with respect to parties to the escrow in that it had one-sided communications with the other cross-defendants and colluded with them. The cause of action is sufficiently set forth, and the demurrer is overruled. <u>Motion to Stike</u> The motion of cross-defendant Briggs & Alexander, APLC, to strike portions of the cross-complaint of cross-complainants The Dodell Law Corporation and Herbert L. Dodell is DENIED for failure to comply with CRC 3.1234. The 7/13/26 CMC is continued to 10/12/26 at 8:45am in Dept. C24. Cross-defendant shall give notice.
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210	<i>Rodriguez vs. Sagar Hotels, Inc.</i>	<u>Demurrer</u> The general demurrer of defendant Sagar Hotel, Inc., to the third and fifth cause of action in the complaint of plaintiffs Debbie Rodriguez, individually and as GAL for minor plaintiffs Melanie Pinto and Aiden Pinto, and Carlos Pintos is SUSTAINED with 20 days' leave to amend. <u>The third cause of action for intentional infliction of emotional distress</u> The allegations in the third cause of action are conclusory and not supported by facts. (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050.) Plaintiffs allege, without supporting facts, that defendant engaged in a “knowing, intentional, and willful” failure to eliminate all bed bug and vermin infestations and remediate the contamination and that this conduct “was so extreme and outrageous as to go beyond all bounds of decency.” (See complaint, ¶ 76.) Plaintiffs also allege that defendant knew that its conduct would result in plaintiffs’ severe past and presently ongoing mental and emotional distress and that it acted with reckless disregard for that emotional distress. (See complaint, ¶ 79.) The demurrer to this cause of action is sustained with leave to amend. <u>The fifth cause of action for fraudulent concealment</u> The allegations in the fifth cause of action are merely conclusions with the exception of an allegation in paragraph 102 that an employee or agent named Mike was aware of the existence of bed bugs on the premise and in the hotel room. The allegations in paragraph 110 are particularly lacking because, in an attempt to hold the entity liable for punitive damages, plaintiffs merely plead
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		three different conclusions in the alternative. (<i>See Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.</i> (2015) 233 Cal.App.4th 803, 831.) The demurrer to this cause of action is sustained with leave to amend. <u>Motion to Strike</u> The motion of defendant Sagar Hotels, Inc., to strike portions of the complaint of plaintiffs Debbie Rodriguez, individually and as GAL for minor plaintiffs Melanie Pinto and Aiden Pinto, and Carlos Pintos is MOOT in part and GRANTED in part. The motion is MOOT as to items 1 through 6 in the notice of motion, which seek to strike paragraphs 87 and 88, which are in the third cause of action for intentional infliction of emotional distress and paragraphs 102, 105, 106, 110, which are in the fifth cause of action for fraud based on concealment. The motion is GRANTED as to items 7 and 8 in the notice of motion, which seek to strike paragraph 115 and the request for punitive damages in the prayer. (Essentially, items 7 and 8 are the same thing because paragraph 115 <i>is</i> the request for exemplary and punitive damages in the prayer.) Because the Court is sustaining the demurrer to the third and fifth causes of action, the remaining causes of action in the complaint, which are for negligence, nuisance, and breach of contract, do not support claims for punitive damages. The court continues the 7/13/26 CMC to 10/12/26 at 8:45am in Dept. C24. Defendant shall give notice.
211	<i>Compass Recovery, Inc. vs. Blue Cross &</i>	The hearing on the Blue Cross Blue Shield of Wyoming's Motion to Quash service of summons is

	<i>Blue Shield of Wyoming</i>	CONTINUED to 10/19/26 at 1:30 p.m. in Dept. C24, to allow limited discovery as set forth herein. Plaintiff Compass Recovery, Inc. (Compass) requests an opportunity to conduct limited discovery on the issue of personal jurisdiction. In the event such is allowed, BCBS also requests an opportunity to conduct targeted discovery relating to Compass’s efforts to contact potential patients in Wyoming. The Court may permit jurisdictional discovery in its discretion. (See <i>Beckman v. Thompson</i> (1992) 4 Cal.App.4th 481, 487) Although the Court will allow limited discovery, the scope of the requested categories proposed by the parties is overbroad. The discovery allowed will be limited to BCBS’s contacts with California as it relates to the 29 BCBS members who Compass alleges they treated. (See Opp. at 3:26-27 – “Compass ultimately treated approximately 29 BCBSWY members.”) This means that each category identified on page 10 of the Opposition shall include the above limitation. For example, category one shall be modified to read: “BCBSWY’s complete authorization and utilization-review files for the 29 BCBS members who Compass alleges they treated.” As a further example, Category nine shall be modified to read, “Communications with case managers, tribal representatives, courts, or other persons concerning placement of the 29 BCBS members who Compass alleges they treated at California facilities.” The same limitations apply to the five categories of discovery listed on page 8 of the Reply. For example, category one shall be modified to read “All documents related to Compass’s employment or other contractual arrangements with Ronnie Arter, including all records of Mr. Arter travelling to Wyoming on behalf of Compass, relating to
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	contacting the 29 BCBS members who Compass alleges they treated.” As a further example, Category three shall be modified to read: “All documents reflecting travel arrangements made by Compass or its agents for the 29 BCBS members who Compass alleges they treated at California facilities to travel from Wyoming to California for treatment.” The parties are to cooperate regarding scheduling and responding to discovery. None of the discovery conducted by or against BCBS shall be construed in any way as submission to jurisdiction of this court, nor shall such be considered a waiver of any arguments challenging the service of summons. The hearing on the motion is CONTINUED to 10/19/26 at 2:00 p.m. in Dept. C24. Plaintiff is allowed to file a supplemental opposition not to exceed 7 pages, along with any supporting declaration, not later than 9/15/26. BCBS may file a supplemental reply not to exceed 7 pages, along with any supporting declaration, not later than 10/1/26. The Case Management Conference is CONTINUED to 10/19/26 at 1:30 p.m. in Dept. C24. BCBS shall give notice.
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